

RUNNER INDEPENDENT CONTRACTOR AGREEMENT

DRAFT — ATTORNEY REVIEW REQUIRED BEFORE USE. Prepared for GetBriefed Inc/LLC d/b/a Clinkit ("Platform"). Upload to DocuSign/Dropbox Sign with fields: {{RunnerName}}, {{Date}}, {{Signature}}. Governing law: California; arbitration seat: San Joaquin County.

This Agreement is between GetBriefed Inc/LLC d/b/a Clinkit and {{RunnerName}} ("Runner"), effective {{Date}}.

1. Relationship. Runner is an independent contractor operating an independent delivery business, not an employee, agent, or franchisee. Nothing herein creates employment, partnership, or joint venture. Runner is free to: (a) accept or decline any request without penalty; (b) work for competing platforms, including simultaneously; (c) set Runner's own procurement fee by bidding a markup between 5% and 20% on each order; (d) choose when, where, and whether to log on. Platform does not set schedules, quotas, territories, or require exclusivity.

2. Services. When Runner accepts a request, Runner will purchase the listed items at the designated retail store using the Platform payment mechanism or Runner funds (reimbursed per §4), and deliver them to the buyer's address within the estimated window Runner bid.

3. Equipment & expenses. Runner supplies and maintains Runner's own vehicle, phone, data plan, and insulated bags. All operating expenses are Runner's, reflected in Runner's bid pricing.

4. Payment. Per completed order, Runner receives: item reimbursement + Runner's bid markup ($\times$ any surge multiplier disclosed before acceptance) + the delivery fee, minus the Platform fee of five percent (5%), paid via Stripe Connect within Stripe's standard payout schedule. Runner is responsible for all taxes; Platform will issue/facilitate Form 1099-K and/or 1099-NEC as required. **California:** if applicable law (including Bus. & Prof. Code §7451 et seq., "Prop 22") requires minimum-earnings adjustments, healthcare stipends, or per-mile reimbursements, Platform will apply them per its published Prop 22 policy, which is incorporated by reference.

5. Background check. Runner consents to a criminal-background and motor-vehicle-record check by Platform's vendor (e.g., Checkr) at onboarding and periodically, per the FCRA disclosure and authorization signed separately. Activation is contingent on results consistent with Platform safety criteria.

6. Insurance. Runner represents and shall maintain, at Runner's expense: (a) automobile liability insurance at not less than the state minimum, and Runner acknowledges personal auto policies may exclude commercial use — Runner is solely responsible for appropriate coverage; (b) any insurance required by law for Runner's business. Platform maintains occupational-accident coverage where required by law (e.g., California Prop 22, \$1M). Platform's insurance checklist (05) states requested, not employment-mandated, coverages.

7. Proof of performance. Runner will photograph (a) the itemized store receipt at purchase and (b) the delivered goods at the drop-off location. Failure to provide proof may delay or void payment for that order pending dispute resolution (§11).

8. Conduct & compliance. Runner will comply with traffic laws, will not purchase age-restricted goods unless Platform enables a verified flow, will not substitute items without buyer approval through the app, and will treat

buyer data as confidential and use it only to complete the delivery.

9. Indemnity. Each party will indemnify the other against third-party claims arising from its own negligence or willful misconduct. Runner is solely responsible for claims arising from Runner's operation of a motor vehicle.

10. Term & termination. Either party may terminate at will with notice through the app. Deactivation for safety, fraud, or legal-compliance reasons may be immediate; Runner may appeal per the published deactivation policy.

11. Disputes; arbitration; class waiver. Any dispute arising out of this Agreement or Runner's use of the Platform shall be resolved by binding individual arbitration under the FAA, administered by AAA under its Commercial Rules, in San Joaquin County, California or by videoconference. **Both parties waive class, collective, and representative actions to the fullest extent permitted by law.** Runner may opt out of this §11 by written notice within 30 days of signing. Small-claims actions and PAGA claims to the extent non-waivable are excepted.

12. Miscellaneous. Entire agreement; amendments by Platform effective on 14 days' in-app notice (continued use = acceptance; arbitration changes require re-consent); severability; California law without conflict rules.

GetBriefed Inc/LLC d/b/a Clinkit	Runner
By: _____	{{Signature}}
Title: _____	Name: {{RunnerName}}
Date: _____	Date: {{Date}}